

14. 9:00 AM CASE NUMBER: MS25-0449
CASE NAME: CSCDA COMMUNITY IMPROVEMENT AUTHORITY VS. ADONICA SHAW
***HEARING ON MOTION IN RE: MOTION FOR SANCTIONS**
FILED BY: SHAW, ADONICA
TENTATIVE RULING:

Defendant seeks sanctions from plaintiff, largely on the grounds stated in her motion to set aside the judgment. For the reasons explained in denying the motion to set aside the judgment, the motion for sanctions is **denied**.

15. 9:00 AM CASE NUMBER: MS25-0449
CASE NAME: CSCDA COMMUNITY IMPROVEMENT AUTHORITY VS. ADONICA SHAW
***HEARING ON MOTION IN RE: MOTION FOR LEAVE TO FILE CROSS-COMPLAINT**
FILED BY: SHAW, ADONICA
TENTATIVE RULING:

Defendant moves for leave to file a cross-complaint.

A cross-complaint is generally not permitted in an unlawful detainer. (*Vella v. Hudgins* (1977) 20 Cal. 3d. 251, 255.) Defendant relies on cases that state that after a tenant vacates the premises, they may seek affirmative relief that otherwise would not have been available in an unlawful detainer proceeding. (*Duncan v. Kihagi* (2023) 96 Cal.App.5th 703, 709.) In this case, however, the removal of possession as an issue was accomplished through entry of a final judgment in the entire case. Moreover, where a cross-complaint is permitted, “[l]eave may be granted in the interest of justice at any time *during the course of the action*.” (CCP § 428.50, emphasis added.) Because final judgment has been entered, it is no longer “in the course of the action.”

16. 9:00 AM CASE NUMBER: MS25-0449
CASE NAME: CSCDA COMMUNITY IMPROVEMENT AUTHORITY VS. ADONICA SHAW
***HEARING ON MOTION IN RE: MOTION FILED TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION, SET ONE**
FILED BY:
TENTATIVE RULING:

Defendant seeks to compel responses to a set of Requests for Production of Document. The requests were served on July 31, 2025. Judgment was entered (by stipulation) on July 11, 2025. Defendant argues the discovery is relevant to determining that the three-day notice to pay rent or quit was never properly served. Defendant argues that the discovery is relevant to her proposed cross-complaint. The motion for leave to file a cross-complaint has been denied, however. Thus, the discovery in question is not directed at any claim presently before the Court. Moreover, the motion to compel production was filed on July 31, 2025, the same day the discovery requests were served. Thus, the **motion was filed too early**.